

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS OCTOBER TERM, A.D. 2021

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SR.....CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HER HONOR: SIE-A-NYENE G. YUOH.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: JOSEPH N. NAGBE..... ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE

Winston Kennedy, Emmanuel Basepaul, Stephen Kennedy)
Daniel Kollie, Chris Harris, Gift Kennedy, and others to)
be identified.....Appellants)

Versus)

) Appeal

Republic of Liberia by and thru Victor Sannor, Anthony)
C. Dennis, Sando Dorbor Momo, Vengeline Neaubell)
And Officer James Y. BrownAppellee)

GROWING OUT OF THE CASE:)

Republic of Liberia by and thru Victor Sannor, Anthony)
C. Dennis, Sando Dorbor Momo, Vengeline Neaubell)
and Officer James Y. Brown.....Petitioner)

VERSUS)

) Petition for a Writ of Certiorari

His Honor Nelson T. Tokpa, Assigned Circuit Judge)
Criminal Court "D"1st Respondent)

And)

Winston Kennedy, Emmanuel Basepaul, Stephen Kennedy)
Daniel Kollie, Chris Harris, Gift Kennedy, and others to be)
identified.....2nd Respondents)

GROWING OUT OF THE CASE:)

Winston Kennedy, Emmanuel Basepaul, Stephen Kennedy)
Daniel Kollie, Chris Harris, Gift Kennedy, and others to)
be identified.....Movants)

Versus)

) Motion to Admit to Bail

Republic of Liberia by and thru Victor Sannor, Anthony)
C. Dennis, Sando Dorbor Momo, Vengeline Neaubell and)
Officer James Y. BrownRespondent)

GROWING OUT OF THE CASE:)

Republic of Liberia by and thru Victor Sannor, Anthony)
C. Dennis, Sando Dorbor Momo, Vengeline Neaubell)
and Officer James Y. BrownPlaintiff)

Versus)

CRIMES:

) Armed Robbery, Criminal
) Attempt to Commit Murder,
) Aggravated Assault, Disorderly
) Conduct, Criminal Mischief

Winston Kennedy, Emmanuel Basepaul, Stephen Kennedy,)
Daniel Kollie, Chris Harris, Gift Kennedy, and others to be)
identified.....Defendants)

Heard: November 9, 2021

Decided: February 17, 2022

MADAM JUSTICE YUOH DELIVERED THE OPINION OF THE COURT

On June 4, 2021, the appellee herein, the Republic of Liberia, petitioned Mr. Justice Joseph N. Nagbe who presided in the Chambers of the Supreme Court for the March Term, A. D. 2021, praying for the issuance of the alternative writ of certiorari to review and correct the ruling of Judge Nelson Tokpa, granting a motion to admit to bail the appellants, Winston Kennedy, Emmanuel Basepaul, Stephen Kennedy, Daniel Kollie, Chris Harris, and Gifty Kennedy who were indicted for the commission of the crimes of armed robbery, criminal mischief, criminal attempt to commit murder, aggravated assault, criminal facilitation and disorderly conduct.

Having ordered the issuance of the alternative writ, and thereafter heard arguments on the petition, the Justice presiding in Chambers entered a ruling, sustaining the alternative writ of certiorari initially issued, and ordered the issuance of the peremptory writ. The appellants noted exceptions to the said ruling and announced appeal therefrom to the Supreme Court *en banc*, hence the present appeal. The ruling of Mr. Justice Nagbe being the subject of the present appeal, we quote pertinent excerpts thereof, to wit:

“...Given the arguments and contentions advanced before this Court and taking cognizance of all the law citations contained on the pleadings of the parties, there is one issue determinative of this case, and it is: Whether or not a judge can grant bail in a case of capital offense, armed robbery? This Court answers no.

The records in this case show that the respondents/defendants were charged with the crimes of armed robbery, criminal mischief, criminal attempt to commit murder, aggravated assault, criminal facilitation and disorderly conduct at the Careysburg Magisterial Court as a result of a criminal action filed by the petitioner herein; that upon the granting of a motion for preliminary examination by the Magistrate, John L. Griggs, the petitioner filed a petition for summary proceedings before Criminal Court “D” which was heard and granted. The records further reveal that the Judge of Criminal Court “D”, His Honor Sikajipo Wollo, subsequently granted bail to some of the defendants to seek medical attention consistent with law but because they (defendants) did not live up to the dictates of the bail, they were ordered re-

arrested by Judge Nelson Tokpa following their indictment; that while they were in prison, their counsel filed a motion to admit them to bail and same granted by Judge Nelson Tokpa who was presiding over Criminal Court "D" by assignment; hence, this petition for a writ of certiorari.

The 1st Respondent Judge, His Honor Nelson Tokpa, in reaction to the petition for a Writ of Certiorari, justified his action that because the prosecution/petitioner failed to come to court or pray for assignment to conduct hearing and determine whether the respondents did not live up to the condition of Judge Wollo's Order, he had granted bail to the respondents in line with Chapter 13, Section 13.5 of the Criminal Procedure Law.

This Court notes the contention of the 1st respondent Judge, His Honor Nelson Tokpa. However, the law relied upon by the Judge is not applicable in the instant case. In this jurisdiction, the law says "a person in custody for the commission of a capital offense shall, before conviction, be entitled as of right to be admitted to bail unless the proof is evident or the presumption great that he is guilty of the offense....after indictment for such an offense, the burden is on the defendant to show that the proof is not evident or the presumption is not great". Chapter 13, Section 13.1 of the Criminal Procedure Law.

This Court wonders how could the Judge admit to bail persons charged with the crime of armed robbery, a felony of first degree, which is a non-bailable offense? What drove his conviction that the proof is not evident or the presumption is not great that the respondents are guilty of the offense? Having been indicted, the burden to prove their innocence rests with the defendants and this could only be settled through regular trial where testimonies are taken and evidence produced.

As to the contention of the 2nd respondents that certiorari cannot and will not lie in the instant case because the petitioner failed to produce the records from the lower court, relying on the case: *Ajavon v. Bull*, 14 LLR 178, in which the Supreme Court of Liberia, in 1960, held that "certiorari will not lie where the record below has not been produced", this Court says that the assertion or belief of the 2nd respondents does not find support in the instant case. The records in this case show that on June 3, 2021, a release ordering the Prison Superintendent of the Monrovia Central Prison to release the living body (ies) of the respondents herein was approved under the signature of His Honor Nelson Tokpa, Judge Criminal Court "D". This Court further notes that the 1st respondent Judge Nelson Tokpa admitted in his returns to this Court that he released (granted bail) to the 2nd respondents because the petitioner failed to come to court or pray for notice of assignment. In light of the foregoing, can the 2nd respondents conclude that there was no record from the lower court? This Court disagrees.

Having thus said, it is the holding of this Court that the 1st respondent Judge, His Honor Nelson Tokpa, erred when he admitted to the defendants/respondents, who were charged for armed robbery and other crimes, to bail contrary to established law in this jurisdiction.

Wherefore, and in view of the foregoing, this Court holds that the petition for the Writ of Certiorari is hereby granted. The Clerk of this Court is ordered to issue the peremptory Writ of Certiorari, send a mandate to Criminal Court "D", commanding the Judge presiding therein to resume jurisdiction over this case, re-arrest the defendants/respondents and have them incarcerated in the common jail, and proceed according to law. AND IT IS HEREBY SO ORDERED."

Having reviewed the records before us, we are of the considered view that this appeal presents a single issue for our review and determination, viz.: whether a defendant, who is indicted for armed robbery, although in addition to other crimes, may be granted bail pursuant to Chapter 13 of the Criminal Procedure Law.

The records show that the appellants were indicted for the alleged commission of several crimes to include armed robbery; that following their arrest and charge, but prior to their indictment, they were released from detention pursuant to sub-section 13.5 of the Criminal Procedure Law for the purpose of seeking medical attention, however, with the *proviso* that they report to the trial court on a weekly basis; that following their indictment, the appellants were subsequently rearrested, upon motion filed by the petitioner, for their failure to honor the court's order regarding their weekly Friday appearance at the trial court; that following the arrest of the appellants, upon the orders of Judge Nelson Tokpa, the same judge subsequently ordered their release under the provision of section 13.5 of the Criminal Procedure Law for what the judge reasoned as the appellee's failure to appear for the hearing of the motion to admit to bail and that the court was satisfied that the said appellants would appear before court whenever they were required.

Pertaining to the granting of bail for capital offenses, generally, the law states thus:

"A person in custody for the commission of a capital offense shall, before conviction, be entitled as of right to be admitted to bail unless the proof is evident or the presumption great that he is guilty of the offense. On the hearing of an application for admission to bail made before indictment by a person in custody for the commission of a capital offense, the burden of showing that the proof is evident or the presumption great that he is guilty of the offense is on the Republic. After

indictment for such an offense, the burden is on the defendant to show that the proof is not evident or the presumption not great. After conviction for a capital offense, no person shall be continued at large on bail or be admitted to bail except in accordance with the provisions of paragraph 3 of this section.” Criminal Procedure Law, Rev. Code 2:13.1

However, we take judicial notice of amendments to Chapters 14 and 15 of Title 26, of the Liberian Code of Laws Revised, otherwise known as the New Penal Law. The history of the amendment to the aforementioned provisions reveals that armed robbery and other felonious crimes to include hijacking and terrorism became of grave public concern due to an unprecedented increase in the commission of said crimes. Moreover, prior to the amendment, persons indicted for said crimes were entitled to bail under Chapter 13 of the Criminal Procedure Law. Predicated on the threat and panic posed to the society by the resurgence of indicted persons within society, albeit under the condition of bail, the Legislature deemed it expedient to reclassify the penalties and the entitlement to bail, hence the reclassification of armed robbery and other like crimes as non-bailable.

We observe that in terms of grading, the crime of armed robbery is the highest crime for which the respondents were indicted, and by law dictates whether or not to admit to bail and is classified as a felony of the first degree and a capital and grave offense. *Konuwa and Fahn v. Republic of Liberia*, Supreme Court Opinion, March Term, A. D. 2018. Also, unlike the above quoted general provision of the law pertaining to capital offenses for which the right to bail is conditioned on the provisions of section 13.1 of the Criminal Procedure Law, armed robbery has been reclassified for the purpose of bail, and the amended law to that effect states thus:

“SECTION 2: BAIL: Consistent with the Constitution and the Criminal Law and given the gravity and magnitude of the offenses of Terrorism, Armed Robbery, and Hijacking and the continued danger which such acts pose to the Liberian Nation and citizens, the said **capital crimes shall not be bailable**, regardless of the penalties stipulated herein...” [emphasis ours] Amendment of Chapters 14 and 15, Sub-chapter C, Title 26, New Penal law, July 30, 2008.

WHEREFORE AND IN VIEW OF THE FOREGOING, we affirm the Ruling of the Chambers Justice. The alternative writ of certiorari is sustained and the peremptory writ prayed for ordered issued. Given the mandatory provision of the law, the appellants are ordered re-arrested and incarcerated in common jail. The Clerk of this Court is ordered to send a mandate to the trial court commanding the judge presiding therein to resume

jurisdiction over this case and give effect to the Judgment of this Opinion. AND IT IS
HEREBY SO ORDERED.

Appeal Denied

When this case was called for hearing, Counsellor J. Laveli Supuwood appeared for the appellants. The Ministry of Justice in association with Counsellors Kuku Y. Dorbor and H. Calvin Momolu appeared for the appellee.